

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Raquel Velasquez	Team: Squad #12	CCRB Case #: 201706753	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 07/20/2017 5:30 AM	Location of Incident: Church Avenue and East 43rd Street	18 Mo. SOL 1/20/2019	Precinct: 67		
Date/Time CV Reported Wed, 08/16/2017 10:42 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 08/16/2017 10:42 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Gal Tal	27244	955557	067 PCT
2. POM Ihab Ginem	11307	962433	067 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Gal Tal	Abuse: Police Officer Gal Tal threatened to arrest § 87(2)(b)	A . Unsubstantiated
B . POM Gal Tal	Abuse: Police Officer Gal Tal questioned § 87(2)(b)	B . Unsubstantiated
C . POM Gal Tal	Abuse: Police Officer Gal Tal searched the vehicle in which § 87(2)(b) was an occupant.	C . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

§ 87(2)(b) filed this complaint with the CCRB via the online website on August 16, 2017.

On July 20, 2017, at approximately 5:30 a.m., Police Officer Gal Tal and Police Officer Ihab Ginem, from the 67th Precinct, stopped § 87(2)(b)'s car for reckless driving at Church Avenue and East 43rd Street in Brooklyn. PO Tal allegedly stated to § 87(2)(b) "You better stop or I'm taking you to jail," "If you keep talking I'm gonna arrest you," and, "If you keep talking, like I said, I'm taking you straight to jail, right now" (**Allegation A**). PO Tal then allegedly asked § 87(2)(b) "What is this?" referring to prescription bottles that § 87(2)(b) had in the center console of his car (**Allegation B**). Following this question, PO Tal allegedly searched § 87(2)(b)'s car by asking him to hand over the prescription bottles (**Allegation C**). PO Tal issued § 87(2)(b) a summons for § 87(2)(b) (**01 Board Review**). PO Tal and PO Ginem left the scene thereafter. § 87(2)(g), § 87(4-b)

There is no video evidence for this case.

Mediation, Civil and Criminal Histories

- On August 23, 2017, over the telephone, § 87(2)(b) rejected mediation for this case.
- On October 11, 2017, a request for a Notice of Claim was sent via email. The results are pending and will be added to the case file upon receipt (**02 Board Review**).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (**04 Board Review**).
- PO Tal has been a member of the NYPD for four years and this is his first CCRB complaint.
- PO Ginem has been a member of the NYPD for two years and this is his first CCRB complaint.

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g)

Allegation A: Abuse of Authority- Police Officer Gal Tal threatened to arrest § 87(2)(b)

Allegation B: Abuse of Authority- Police Officer Gal Tal questioned § 87(2)(b)
Allegation C: Abuse of Authority- Police Officer Gal Tal searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) stated that after crossing onto the opposite side of traffic to pass a dollar cab, he made a right turn and pulled over after hearing his name. § 87(2)(b) exited his car, looked around for approximately ten seconds, and returned to his car after not seeing anyone. A marked SUV then pulled up and PO Tal and PO Ginem exited and approached the driver side of § 87(2)(b)'s car. PO Tal repeatedly accused § 87(2)(b) of running away from the officers, but § 87(2)(b) denied the allegations each time. PO Tal replied, "You better stop or I'm taking you to jail." § 87(2)(b) denied running away again. PO Tal asked § 87(2)(b) for his license and registration and § 87(2)(b) provided the documents. PO Tal then asked, "What is this?" referring to two small, orange, prescription bottles in the cup holder of the center console. Both prescription bottles (containing antibiotics and painkillers) had § 87(2)(b)'s name and were prescribed two days prior to the incident following a tooth extraction. § 87(2)(b) explained this to PO Tal. PO Tal replied, "Just give it to me. I want to see it." § 87(2)(b) handed the prescription bottles to PO Tal who looked at the bottles and then returned them to § 87(2)(b). PO Tal continued yelling and repeating that § 87(2)(b)'s driving was "stupid" and that he tried to run away from the officers. § 87(2)(b) apologized and said again that he was not running away. PO Tal responded, "If you keep talking, I'm gonna arrest you" and, "If you keep talking, like I said, I'm taking you straight to jail, right now." The officers walked back to the marked SUV. Approximately five minutes later, the officers returned to § 87(2)(b)'s car. PO Tal handed § 87(2)(b) a summons for reckless driving and said, "I was not going to give you a ticket if you hadn't made that turn and driven away from the officers, but we have to give you a ticket and we should take you to jail for running away from officers." The officers walked away. PO Ginem did not interact with § 87(2)(b).
§ 87(2)(g)
§ 87(2)(g)

PO Tal stated that, after observing § 87(2)(b) driving recklessly by driving on the opposite lane of traffic, he made a U-turn and turned on the lights and siren to signal a stop. § 87(2)(b) sped and made a right turn. PO Tal drove around the block to avoid chasing § 87(2)(b) and pulled up in front of § 87(2)(b)'s car. At the time, § 87(2)(b) was standing outside of his car by the driver's side. PO Tal and PO Ginem approached § 87(2)(b) and PO Tal asked § 87(2)(b) for his license, registration, and insurance. § 87(2)(b) provided his documentation and PO Tal told § 87(2)(b) that he was being stopped for reckless driving. § 87(2)(b) stated, "I'm sorry. I didn't see you." PO Tal instructed § 87(2)(b) to sit in his car and he complied. PO Tal and PO Ginem returned to their marked SUV and PO Tal ran warrant and license checks, and wrote § 87(2)(b) a summons for § 87(2)(b). PO Tal re-approached § 87(2)(b) handed him the summons, and told § 87(2)(b) that he had to respond and appear at court, otherwise there will be a warrant issued for his arrest, but he did not recall § 87(2)(b)'s response. PO Tal did not threaten to arrest § 87(2)(b) and he did not recall saying, "You better stop or I'm taking you to jail," "If you keep talking, I'm gonna arrest you," or "We should take you to jail for running away from officers." PO Tal did not recall seeing any items within the center console area of § 87(2)(b)'s vehicle, including prescription bottles. PO Tal did not recall asking § 87(2)(b) about the prescription bottles or telling § 87(2)(b) to pass him the prescription bottles so that he could see them (06 Board Review).

§ 87(2)(g) PO Ginem did not hear PO Tal threaten to arrest § 87(2)(b) or say to § 87(2)(b) “You better stop or I’m taking you to jail,” “If you keep talking, I’m gonna arrest you,” or “We should take you to jail for running away from officers.” PO Ginem did not notice any items in the center console of § 87(2)(b) s car, including prescription bottles. PO Ginem did not hear PO Tal question § 87(2)(b) about the prescription bottles. PO Ginem did not hear PO Tal ask § 87(2)(b) to give him the prescription bottles (**07 Board Review**).

§ 87(2)(g) Therefore, it is recommended that **Allegations A, B, and C** be closed as *unsubstantiated*.

§ 87(2)(g), § 87(4-b)

Squad: **12**

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date